

25NNCV08955 25NNCV08955

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Case Number: 25NNCV08955 Hearing Date: July 21, 2026 Dept: T

Suzanna S. Khryan vs BMW Of North America, LLC, a
Delaware Limited Liability Company, et al.

Four Motions to Compel Further Responses

Moving Party: Defendant
BMW of North America, LLC

Responding Party: Plaintiff
Suzanna S. Khryan

Tentative Ruling: Deny

RULING

On March 2, 2026, Defendant BMW of North America, LLC, ("Defendant") properly served Plaintiff Suzanna S. Khryan ("Plaintiff") with a set of discovery including form interrogatories, special interrogatories, requests for production and requests for admissions. On April 24, 2026, following a stipulated extension by the parties, Plaintiff timely served verified responses. On June 11, 2026, Defendant filed the instant motions to compel further responses to these interrogatories. Given this undisputed timeline, Defendant was required to file and serve its motion by June 10, 2026. (Code Civ. Proc. § 2030.300, subd. (c); Code Civ. Proc. § 2033.290, subd. (c); and Code Civ. Proc. § 2031.310, subd. (c) [all providing that the notice of

motion must be given within 45 days of service of the verified response]; Code Civ. Proc. § 1013, subd. (e) [extending this 45-day period by two court days for electronic service].)

Although Defendant contends that it provided timely notice based on a calculated deadline of June 12, 2026, Defendant appears to erroneously add two court days to the date of service before applying the 45-day notice period.

However, the express language of Section 1013(e) makes clear that “[s]ervice is complete at the time of transmissions,” thereby establishing that service of Plaintiff’s responses was complete on April 24, 2026. Section 1013(e) also provides the method of calculation by requiring that “any period of notice and any right or duty to do any act or make any response within any period or on a date certain after service of the document, which time period or date is prescribed by statute or rule of court, shall be extended, after service by facsimile transmission, by two court days.” (Italics added.) Accordingly, as the 45-day notice period shall be extended by two court days, the resulting deadline to give notice was June 10, 2026.

Thus,

the Court finds that Defendant waived its right to compel further responses. (Code Civ. Proc. § 2030.300, subd. (c); see, e.g., *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 137 [affirming the trial court’s denial of a motion to compel further responses as untimely due to its filing one day after the responsive deadline].) Therefore, the motion to compel further responses is denied. (*Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685 [holding that a court acts in excess of its jurisdiction by ordering further responses if a motion is untimely].)

Under these circumstances, the Court finds that the imposition of sanctions would be unjust. Plaintiff’s request for monetary sanctions is denied.

Defendant BMW of North America, LLC’s motions to compel further responses are denied.